

EMAIL TEXT EXTRACT

This file is the email text. It is not the original letterhead PDF. If a PDF was attached, that file is stored separately.

Date: Fri, 2 Jun 2023 07:06:35 +0000

From: PID <PID@ndis.gov.au>

To: "richarddrawsstuff@gmail.com" <richarddrawsstuff@gmail.com>

Subject: Re: PID 2023/Krypton - Allocation decision [SEC=OFFICIAL]

Dear Dr McLean

I acknowledge your below email and your request that I reconsider my decision made under section 43(2) of the Public Interest Disclosure Act 2013 (PID Act) not to allocate your disclosures dated 18 April 2023.

Please be advised that there is no mechanism under the PID Act that would allow an authorised officer to reconsider or review an allocation decision once it has been made. For this reason, I will not reconsider my decision dated 31 May 2023 and will not take any further action in relation to your disclosures dated 18 April 2023.

In my decision dated 31 May 2023, I set out other courses of action that may be available to you under other laws of the Commonwealth. For your convenience, I have listed these again below:

- * a complaint to the Commonwealth Ombudsman under the Ombudsman Act 1976 (see <https://www.ombudsman.gov.au/complaints/how-to-make-a-complaint>)

- * an application for judicial review of my decision not to allocate your disclosure under the Administrative Decisions (Judicial Review) Act 1977.

For completeness, I note that in your email you have raised several questions about NDIS providers and about the COVID-19 Advance Payment. To assist you, you can find more information about these topics on the NDIS website at www.ndis.gov.au and the NDIS Quality and Safeguards Commission website at www.ndiscommission.gov.au.

Please note that any future correspondence from you about this matter will be read and filed without acknowledgement or response.

Regards

Debbie Mitchell PSM
Deputy CEO Governance, Risk and Integrity
National Disability Insurance Agency

From: Rich McLean <richarddrawsstuff@gmail.com>

Sent: Thursday, 1 June 2023 9:00 AM

To: PID <PID@ndis.gov.au>

Cc: richarddrawsstuff@gmail.com

Subject: Re: PID 2023/Krypton - Allocation decision [SEC=OFFICIAL]

Dear Debbie,

I did not say I was employed by DSS Scott Treadwell from The Federal Court was satisfied I as.

If it is not a Government login why I am I logged in on a Government site when the words say 'employee'?

My NDIS role may well have been a provider to the NDIS - but that role existed with a n agreement or a contact between myself and the NDIS Commission for the purposes of being a registered NDIS provider.

That contract which resulted in the registration is attached.

What is also attached is that I was paid money for COVID from the Government without me asking - that is because I was a registered employee with a Government login and a contract with the Government for the purposes of being employed.

You said:

'That is, they are not contracts between the NDIS provider and the NDIA or another Commonwealth Government Department or agency. '

This is incorrect and I have attached my 'registration' which is a contract to the NDIS commission under which I am required to meet my obligations as an employee.

If there is any doubt that this is a contract you must be made aware that the NDIS has since terminated my contract leading me to be unregistered as an NDIS provider and therefore basically fired and unable to work.

I wish to ask you to reconsider my role as a public official for the purposes of the PID act and therefore my whistleblowing status urgently.

Dr Rich McLean

[cid:5023948f-fb12-4741-8c6e-87e67aa43289@AUSP282.PROD.OUTLOOK.COM]

On 31 May 2023, at 8:29 am, PID <PID@ndis.gov.au<mailto:PID@ndis.gov.au>> wrote:

Private and Confidential

Dear Dr McLean

Please see attached correspondence in relation to your emails dated 18 April 2023.

If you have any queries, please email PID@ndis.gov.au<mailto:PID@ndis.gov.au>.

Regards

Public Interest Disclosure Team

National Disability Insurance Agency

E PID@ndis.gov.au<mailto:PID@ndis.gov.au>

<image001.png>

<image002.png><<https://intranet.ndiastaff.ndia.gov.au/hr/Diversity/Pages/LGBTIQA-plus-Inclusion-Plan.aspx>>

The NDIA acknowledges the Traditional Custodians of Country throughout Australia and their continuing connection to land, sea and community. We pay our respects to them and their cultures and to Elders past, present and emerging.

<image003.png>

***** IMPORTANT: Thi
s e-mail is for the use of the intended recipient only and may contain information th
at is confidential, commercially valuable and/or subject to legal or parliamentary pr
ivilege. If you are not the intended recipient you are notified that any review, re-t
ransmission, disclosure, dissemination or other use of, or taking of any action in re
liance upon, this information is prohibited and may result in severe penalties. If yo
u have received this e-mail in error please notify the sender immediately and delete
all electronic and hard copies of this transmission together with any attachments. Pl
ease consider the environment before printing this e-mail *****
*****<PID 2023 Krypton - Allocation decision.pd
f>

***** IMPORTANT: Thi
s e-mail is for the use of the intended recipient only and may contain information th
at is confidential, commercially valuable and/or subject to legal or parliamentary pr
ivilege. If you are not the intended recipient you are notified that any review, re-t
ransmission, disclosure, dissemination or other use of, or taking of any action in re
liance upon, this information is prohibited and may result in severe penalties. If yo
u have received this e-mail in error please notify the sender immediately and delete
all electronic and hard copies of this transmission together with any attachments. Pl
ease consider the environment before printing this e-mail *****
